

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Jacobson	Team: Squad #14	CCRB Case #: 201503943	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Sunday, 05/17/2015 8:01 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/17/2016	Precinct: 71
Date/Time CV Reported Tue, 05/19/2015 6:42 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 05/19/2015 6:42 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Larry Meyers	05284	939030	071 PCT
2. POM Charles Davis	01586	941623	071 PCT
3. POM Eric Ruiz	24356	923086	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Abraham Niedzwiecki	1209	956131	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Larry Meyers	Abuse: Sgt. Larry Meyers searched a car.	A . Exonerated
B . POM Eric Ruiz	Abuse: PO Eric Ruiz interfered with § 87(2)(b)'s ability to record an incident.	B . Substantiated
C . POM Eric Ruiz	Abuse: PO Eric Ruiz damaged § 87(2)(b)'s property.	C . Substantiated
D . SGT Larry Meyers	Off. Language: Sgt. Larry Meyers made remarks to § 87(2)(b) based upon race.	D . Unfounded
E . POM Eric Ruiz	Force: PO Eric Ruiz used a chokehold against § 87(2)(b)	E . Unsubstantiated
F . POM Eric Ruiz	Force: PO Eric Ruiz restricted § 87(2)(b)'s breathing.	F . Unsubstantiated
G . POM Eric Ruiz	Force: PO Eric Ruiz used physical force against § 87(2)(b)	G . Exonerated
H . POM Charles Davis	Force: PO Charles Davis used physical force against § 87(2)(b)	H . Exonerated
I . SGT Larry Meyers	Force: Sgt. Larry Meyers used physical force against § 87(2)(b)	I . Exonerated

Case Summary

On May 17, 2015, at approximately 7:55 p.m., § 87(2)(b) exited his residence at § 87(2)(b) in Brooklyn, and observed Sgt. Larry Meyers of the 71st Precinct climbing inside the open sunroof of a white BMW (**Allegation A**). § 87(2)(b) was holding his § 87(2)(b) year old son, § 87(2)(b) in his arms and took out his iPhone 5 to record the search. § 87(2)(b) continued recording the officers and walked out to the middle of Empire Boulevard, stopping in the middle of the street, in a median non-traffic lane which divides the street's traffic. PO Eric Ruiz and PO Charles Davis of the 71st Precinct told § 87(2)(b) that he needed to leave and approached § 87(2)(b). PO Ruiz slapped § 87(2)(b)'s phone out of his hand, causing it to fall to the ground. The front screen of § 87(2)(b)'s phone was cracked as a result of this action (**Allegations B and C**). § 87(2)(b)'s friend, § 87(2)(b) alleged that he heard Sgt. Meyers comment, "We don't fight niggers like you, we have bullets for niggers like you." (**Allegation D**). PO Ruiz allegedly placed a hand around the front of § 87(2)(b)'s neck and placed a hand over § 87(2)(b)'s mouth (**Allegations E and F**). PO Ruiz, PO Davis, and Sgt. Meyers chased § 87(2)(b) back to the sidewalk and attempted to remove his son from his arms. Once his son was out of his arms, PO Davis pulled on § 87(2)(b)'s left arm and slammed him to the ground. § 87(2)(b) was arrested as a result of the incident (**Allegations G, H, and I**).

Mediation, Civil, and Criminal Histories

This case was unsuitable for mediation due to § 87(2)(b)'s arrest (**BR 01**). As of August 13, 2015, § 87(2)(b) has not filed a notice of claim (**BR 02**). § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) § 87(2)(b) § 87(2)(b)
- Sgt. Meyers has been a member of the NYPD for 10 years, has had 27 previous CCRB allegations involving 16 cases, with one substantiated allegation for search of person § 87(2)(g) § 87(2)(b).
- PO Ruiz has been a member of the NYPD for 16 years, has had 23 previous CCRB allegations involving 12 cases with no substantiated allegations. Although PO Ruiz has 10 prior force allegations; six were exonerated, one was unfounded, one was unsubstantiated, and two were unable to be investigated due to the victim being unavailable or uncooperative.
- PO Davis has been a member of the NYPD for nine years, has had six previous CCRB allegations involving three cases, with no substantiated allegations. § 87(2)(g) § 87(2)(b)

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) alleged that he heard an officer make a comment, "We don't fight niggers like you, we have bullets for niggers like you." § 87(2)(b) described this officer as a white male, standing 6'0" tall, skinny build with a little bit of bulk, with black or brown hair but not a full head of hair. Sgt. Meyers is a white male, § 87(2)(b), with partially balding brown hair. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) alleged that after PO Ruiz and PO Davis approached him in the middle of the street, one of the officers placed his open hand around the front of § 87(2)(b)'s neck and placed a hand over § 87(2)(b)'s mouth, restricting his breathing. Although § 87(2)(b) identified the officer that took this action as either PO Ruiz or PO Davis, he was not sure which officer was doing what action during this time.

PO Ruiz denied having his hand on § 87(2)(b)'s neck and did not recall if he touched § 87(2)(b)'s mouth, and did not witness any other officer do this. PO Davis denied having his hand on § 87(2)(b)'s neck or mouth area and did not see any other officer do this. Both Sgt. Meyers and PO Niedzweicki denied seeing any officer with his hands on § 87(2)(b)'s neck or mouth. § 87(2)(b)'s friend, § 87(2)(b), described an officer placing § 87(2)(b) in a chokehold and flinging him to the ground. § 87(2)(b) was unable to describe this officer, with the exception of him being a tall, white male. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Recommendations

Allegation A – Abuse of Authority: Sgt. Larry Meyers searched a car.

It is undisputed that Sgt. Meyers searched a white BMW parked across the street from § 87(2)(b).

§ 87(2)(b)

Sgt. Meyers stated that the vehicle was parked illegally in front of a fire hydrant. After the driver of the vehicle fled the scene, the vehicle was considered under police custody. Additionally, the driver of the vehicle would have been arrested for obstructing government administration, vehicle and traffic violations, and reckless endangerment, and the vehicle would have become part of arrest evidence. Sgt. Meyers stated that he entered the vehicle to check for contraband and to perform an inventory search. Sgt. Meyers entered the vehicle through the sunroof because all the doors of the vehicle were locked and searched all areas of the car, including the glove compartment and backseat, although he could not recall if he checked the trunk of the car (**BR 20**). The car was towed and issued traffic violations for being parked less than 6 feet from a fire hydrant and not having an inspection sticker (**BR 16**).

Patrol Guide Procedure 218-13 states that whenever any property comes into the custody of the police department, an inventory search must be conducted. For a vehicle, the interior must be searched thoroughly, including the glove compartment and trunk (**BR 04**).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation B – Abuse of Authority: PO Eric Ruiz interfered with § 87(2)(b)'s ability to record an incident.

Allegation C – Abuse of Authority: PO Eric Ruiz damaged § 87(2)(b)'s property.

§ 87(2)(b) stated that after witnessing Sgt. Meyers climbing into the white BMW, he began filming the incident on his phone from across the street. While holding his § 87(2)(b) year old son, § 87(2)(b) crossed the street towards the location of the white BMW and walked out to the middle of § 87(2)(b). § 87(2)(b) is a two way street, with the direction of traffic separated by a median non-traffic lane (**BR 08**). § 87(2)(b) stated that he was beginning to move back when two officers, identified through investigation as PO Ruiz and PO Davis, exited

their police car and told § 87(2)(b) to go and that he needed to leave. Approximately two seconds after PO Ruiz spoke to § 87(2)(b) the officers approached § 87(2)(b) § 87(2)(b) told the officers “I’m recording, I’m recording.” PO Ruiz slapped § 87(2)(b)’s phone out of his hand, causing the phone to fly outwards to the right, landing on the ground towards a nearby parked police car. § 87(2)(b)’s phone was damaged as a result of this action, the front screen of the phone was cracked (**BR 11**). On video, § 87(2)(b) can clearly be heard telling officers that he is recording (**BR 23**).

§ 87(2)(b) was standing on the street in front of § 87(2)(b) when the incident occurred. He noted several individuals filming the officers as they searched the white BMW and noted one individual, described as a skinny black male in his 20s and identified through investigation as § 87(2)(b) videotaping from across the street and begin getting closer and closer to the police. § 87(2)(b) “inched up” between the police van and police car. One of the officers told § 87(2)(b) to back off and gestured with his hand back and forth. There were a few other officers in the area and all saw § 87(2)(b) moving forward and instructed him to back off, while gesturing at him. § 87(2)(b) could not recall if he actually saw § 87(2)(b) enter the traffic lane, because at that point, PO Ruiz grabbed § 87(2)(b)’s hand and tried to take his phone from him (**BR 13**).

§ 87(2)(b) was standing outside in the vicinity of § 87(2)(b). § 87(2)(b) witnessed his friend, § 87(2)(b) recording officers while standing on the sidewalk in front of § 87(2)(b), while holding his son. § 87(2)(b) stated that § 87(2)(b) remained on the sidewalk, only walking a step or two off the curb. As soon as § 87(2)(b) stepped off the curb, four officers approached him. § 87(2)(b) was holding his son in his left arm and had his phone in his right hand, extended in “selfie-mode.” PO Ruiz slapped § 87(2)(b)’s phone out of his hand, causing the phone to fall to the ground. § 87(2)(b) later picked § 87(2)(b)’s phone up from the ground and noted that it appeared to be broken (**BR 14**).

PO Ruiz recalled seeing § 87(2)(b) with a phone in his hand and described § 87(2)(b) as holding the phone in his right hand, in front of him and raised. PO Ruiz stated that he approached § 87(2)(b) informed him he was under arrest, and to let the baby go. PO Ruiz stated that he grabbed § 87(2)(b) on his right forearm and did not know what happened to the phone when he grabbed § 87(2)(b)’s arm. During his CCRB interview, PO Ruiz was asked five times if he had slapped the phone from § 87(2)(b)’s hand and each time merely stated, “I grabbed his arm.” After prompting from both the investigators and his legal representative that he needed to answer the question of whether he slapped the phone, PO Ruiz then stated that he did not recall (**BR 22**).

PO Davis stated that § 87(2)(b) pulled out his phone and informed the officers that he was recording. PO Davis stated that upon approaching § 87(2)(b) PO Ruiz grabbed § 87(2)(b)’s hand by the wrist, causing § 87(2)(b)’s phone to fly out of his hand and that this was the only physical contact that any officer had with § 87(2)(b) in the street. PO Davis stated that PO Ruiz did not ever knock the phone from § 87(2)(b)’s hand and he did not know what happened to § 87(2)(b)’s phone. Sgt. Meyers stated that § 87(2)(b) had a phone in his hand, but did not see what § 87(2)(b) was doing with the phone or remember if § 87(2)(b) made any comments related to it. PO Niedzweicki stated that § 87(2)(b) was filming on his phone during the incident. Both Sgt. Meyers and PO Niedzweicki denied ever seeing any officer slap § 87(2)(b)’s phone out of his hand and did not see any damage to the phone or a phone on the ground (**BR 21**).

Video footage from § 87(2)(b)'s phone shows him moving forward to record an officer standing upright in the sunroof of a white vehicle. PO Ruiz, who viewed the video and identified himself, approaches § 87(2)(b) and begins saying, "Take the child." The video recording then becomes extremely shaking and jumbled, as though the phone is being abruptly moved around, and the video cuts off (**BR 23**).

Patrol Guide Procedure 208-03 states that it is lawful for onlookers to videotape police incidents. Additionally, part of the mission of the New York City Police Department is to protect the property of all citizens of New York City by treating every citizen with courtesy, professionalism and respect, (Patrol Guide Procedure 200-02) (**BR 05-06**).

§ 87(2)(g)
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§ 87(2)(g)
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[REDACTED] it is recommended that **Allegation B** and **C** be closed as **substantiated**.

Allegation D – Offensive Language: Sgt. Larry Meyers made remarks to § 87(2)(b) based upon race.

In a phone statement, § 87(2)(b) alleged that he heard an officer make a comment, “We don’t fight niggers like you, we have bullets for niggers like you.” § 87(2)(b) stated that this comment was made toward another individual, § 87(2)(b) (BR 15). § 87(2)(b) was uncooperative with providing a verified statement.

§ 87(2)(b) did not acknowledge an officer making this comment to him, and no other civilians interviewed alleged to hearing this statement. Sgt. Meyers denied making this statement, or hearing any other officer say this. All other officers interviewed denied making this statement, or hearing any other officer make this statement. § 87(2)(b) was the only civilian who alleged to hearing this statement and § 87(2)(b) who the statement was allegedly made to, did not mention hearing any officer say anything similar to this. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **unfounded**.

Allegation E – Force: PO Ruiz used a chokehold against § 87(2)(b)

Allegation F – Force: PO Ruiz restricted § 87(2)(b) s breathing.

§ 87(2)(b) stated that after PO Ruiz and PO Davis approached him in the street, an officer, identified by the investigation as PO Ruiz, placed his open hand around the front of § 87(2)(b) s neck and placed a hand over § 87(2)(b) s mouth. § 87(2)(b) s breathing was restricted as a result of this and he said to the officers, “I can’t breathe, I can’t breathe.” § 87(2)(b) noted that because there was a hand over his mouth, his speech was very muffled and estimated he was struggling with the officers like this for one minute, before the officers chased § 87(2)(b) back to the sidewalk area.

§ 87(2)(b) stated that when officers approached § 87(2)(b) one of the officers grabbed § 87(2)(b) by his neck and twisted him down to the floor. § 87(2)(b) further described this action as the officer putting § 87(2)(b) into a chokehold with one arm and flinging § 87(2)(b) down with one arm. § 87(2)(b) could not recall which officer did this, besides describing him as a tall, white male. § 87(2)(b) and § 87(2)(b) did not describe any actions similar to the above described in their interviews, despite the fact that they witnessed most of the struggle. § 87(2)(b) did not come outside until later in the incident, when § 87(2)(b) was already in the process of being handcuffed. Thus, she did not witness the officers’ initial approach towards § 87(2)(b) or describe ever seeing an officer take any actions as described above.

PO Ruiz denied having his hand on § 87(2)(b) s neck and did not recall if he touched § 87(2)(b) s mouth, and did not witness any other officer do this. PO Davis denied having his hand on § 87(2)(b) s neck or mouth area and did not see any other officer do this, and did not hear § 87(2)(b) complain of having trouble breathing. Both Sgt. Meyers and PO Niedzweicki denied seeing any officer with his hands on § 87(2)(b) s neck or mouth. PO Niedzweicki stated that § 87(2)(b) did complain of having trouble breathing, but identified this as happening later in the

incident, during the time in which § 87(2)(b) was face down on the street and in the process of being handcuffed. Sgt. Meyers did not recall § 87(2)(b) making comments about having trouble breathing.

Although two videos exist of the incident, neither video captures the time of the incident during which § 87(2)(b) alleged that an officer placed his hand on his neck and mouth. All physical force displayed in the second video occurs at a later point in the incident, after § 87(2)(b) and the officers are on the sidewalk. It does not show officers grabbing his throat or covering his mouth.

While all civilians and officers stated that PO Ruiz had physical contact with § 87(2)(b) while he was standing in the street, no civilian or officer described seeing any actions similar to a chokehold or an officer making contact with § 87(2)(b) anywhere on his neck or covering his mouth, with the exception of § 87(2)(b). However, as discussed above, § 87(2)(b) did not provide a verified statement § 87(2)(g).

§ 87(2)(g)

Therefore, it is recommended that **Allegations D and E** be closed as **unsubstantiated**.

Allegation G – Force: PO Eric Ruiz used physical force against § 87(2)(b)

Allegation H – Force: PO Charles Davis used physical force against § 87(2)(b)

Allegation I – Force: Sgt. Larry Meyers used physical force against § 87(2)(b)

It is undisputed that that some level of force was used to apprehend § 87(2)(b) after his initial interaction with PO Ruiz in the street.

§ 87(2)(b) stated that the officers chased him to the sidewalk. Three to four minutes after they reached the sidewalk, § 87(2)(b)'s sister, § 87(2)(b) came outside and § 87(2)(b) handed her his son. Once his son was out of his arms, the officers pulled on § 87(2)(b)'s left arm and slammed him to the ground. The officers were telling § 87(2)(b) “Stop resisting, stop resisting.” § 87(2)(b) stated that he said “Okay” and motioned with his hands behind his back, § 87(2)(b) noted that at no point during the incident did he resist in any way. § 87(2)(b) was not sure what officers were doing, but that all four officers were physically involved at this point. § 87(2)(b) landed on the ground face down, with his right cheek facing towards the ground. One of the officers placed his knee on § 87(2)(b)'s head, on his left cheek, forcing his head to the ground. § 87(2)(b) sustained several cuts and scrapes as a result of the incident (**BR 24-25**). § 87(2)(b) went to § 87(2)(b).

§ 87(2)(b) and § 87(2)(b) both stated that after interacting with PO Ruiz in the street, § 87(2)(b) moved back towards the sidewalk, to an area in front of a white gate. § 87(2)(b) and § 87(2)(b) were consistent in that it took some time for the child to be removed from § 87(2)(b). § 87(2)(b) and § 87(2)(b) were consistent in that officers used physical force to remove the child and handcuff § 87(2)(b) although none could articulate what was done or how the baby came to be taken from § 87(2)(b).

In the video of § 87(2)(b)'s arrest, § 87(2)(b) can be seen surrounded by three officers, Sgt. Meyers, PO Ruiz, and PO Davis. All officers watched the video and identified themselves. The

Investigator: _____
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Supervisor: _____
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Reviewer: _____
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